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February 13, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 394

By: Bergstrom of the Senate

and

Kendrix of the House

An Act relating to public health and safety; amending 63 O.S. 2021, Section 91, as amended by Section 1, Chapter 90, O.S.L. 2023 (63 O.S. Supp. 2024, Section 91), which relates to the State Anatomical Board; extending sunset date; updating statutory language; updating statutory reference; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 91, as amended by Section 1, Chapter 90, O.S.L. 2023 (63 O.S. Supp. 2024, Section 91), is amended to read as follows:

Section 91. A. There is hereby re-created, to continue until ~~July 1, 2025~~ July 1, 2030, in accordance with the provisions of the Oklahoma Sunset Law, an oversight ~~Board~~ board to be known as the State Anatomical Board, to be composed of the following members:

1 1. The ~~Deans~~ deans or their designee of each accredited medical
2 school and osteopathic medical school within ~~the State of Oklahoma~~
3 this state;

4 2. The persons heading the ~~Department of Anatomy~~ department of
5 anatomy, or comparable department, in the medical and osteopathic
6 medical schools or their designee;

7 3. Two persons appointed jointly by the presidents of
8 institutions of higher education within the state which have
9 educational programs other than medical which require on a regular
10 basis human anatomical materials, provided that these programs have
11 been approved by the Oklahoma State Regents for Higher Education;
12 and

13 4. One at-large member appointed by the Governor to represent
14 the interests of the citizens of this state.

15 B. It shall be the duty of the State Anatomical Board to
16 register all anatomical donor programs and non-transplant tissue
17 banks and to designate agents to provide for the collection,
18 preservation, storage, distribution, delivery, recovery from users,
19 cremation and final disposition of all dead human bodies used for
20 health science education and research in ~~the State of Oklahoma~~ this
21 state.

22 C. The Board shall elect from its membership a ~~chairperson~~
23 chair who shall perform such other duties as the Board may prescribe
24 by rule. The Board shall have full power to establish rules for its

1 government, to appoint and remove officers, and to appoint an
2 executive director who shall keep full and complete minutes of its
3 transactions and manage the affairs of the Board. The expenditures
4 authorized in this section shall not be a charge against the state,
5 but shall be paid by the agent designated by the Board to receive,
6 store, issue, and cremate human anatomical materials. Records shall
7 also be kept by the agent of all bodies received and distributed for
8 the period of time authorized by the Records Disposition Schedule.
9 The name of the oversight ~~Board~~ board shall be the State Anatomical
10 Board, hereinafter called the Anatomical Board. The Anatomical
11 Board may, in its discretion, exempt any county, district, or
12 institution from the provisions of ~~this act~~ Sections 91 through 100
13 of this title in any calendar year for any length of time.

14 SECTION 2. This act shall become effective July 1, 2025.

15 SECTION 3. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.

19 COMMITTEE REPORT BY: COMMITTEE ON ADMINISTRATIVE RULES
February 13, 2025 - DO PASS AS AMENDED BY CS
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